

The M.P. Cement Apmishran Nivaran Niyam, 1984

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State of Madhya Pradesh - Act

The M.P. Cement Apmishran Nivaran Niyam, 1984

MADHYA PRADESH

India

The M.P. Cement Apmishran Nivaran Niyam, 1984

Rule THE-M-P-CEMENT-APMISHRAN-NIVARAN-NIYAM-1984 of 1984

Published on 7 January 1984

Commenced on 7 January 1984

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The M.P. Cement Apmishran Nivaran Niyam, 1984

Published vide Notification No. F. 11-11-29-2-83, dated 7-1-1984, Madhya Pradesh Rajpatra, Part 4 (Ga), dated 22-3-1985, p. 144

In exercise of the powers conferred by Section 9 of the Madhya Pradesh Cement Apmishran Nivaran Adhiniyam, 1981 (No. 38 of 1981), the State Government hereby makes the following rules, namely-

1.

These rules may be called The Madhya Pradesh Cement Apmishran Nivaran Niyam, 1984.

2.

In these rules, unless the context otherwise requires,

(a)

"Act" means the Madhya Pradesh Cement Apmishran Nivaran Adhiniyam, 1981 (No. 38 of 1981);

(b)

["authorised analyst" means,-

[Substituted by Notification No. 11-12-XXIX-II-84, dated 10-7-1984, published in Madhya Pradesh Gazette (Extra ordinary), dated 10-7-84]

(i)

all members of teaching staff of the colleges specified in the Schedule, not below the rank of lecturer of Civil Engineering or Structural Engineering faculty or Chemistry faculty;

(ii)

all officers not below the rank of Assistant Research Officer posted at Public Works Department, Research Laboratory, Bhopal;]

(c)

"Form" means a form appended to these rules;

(d)

"Laboratory" means a laboratory-

(i)

attached to a college specified in the schedule appended to these rules and used for purposes of analysis of cement or cementitious material;

(ii)

Public Works Department, Research Laboratory, Bhopal;

(e)

"Notified Officer" means an Officer duly notified by the State Government under Section 7;

(f)

"Section" means a Section of the Act;

3.

Where a notified Officer takes sample under Section 7, he shall give an acknowledgment thereof in Form 1 to the dealer concerned and shall effectively seal the sample, suitably mark it and permit the dealer to add his own seal and mark.

4.

The notified officer shall pay to the dealer, from whose premises he has taken sample, the cost of quantity of sample, calculatedly at the rate at which such article is sold or supplied to the public with due regard to prevailing rates.

5.

Where a dealer refuses to receive the cost of sample under Rule 4, the notified officer shall obtain from the dealer a statement in writing to that effect.

6.

[

[Substituted by Notification No. 11-12-XXIX-II-84, dated 10-7-1984]

(1)

Out of the samples taken by the notified officer under Section 7 two shall be sent to the authorised analyst through the Principal or the Collector or the Superintending Engineer (Research), as the case may be, together with a memorandum in Form II and one sample shall be retain by the notified officer with him.

(2)

The analysis shall be done by the authorised analyst in the Laboratory.]

7.

The certificate of test of analysis shall be sent by the authorised analyst to the notified officer in Form III in a sealed packet by registered post acknowledgment due or shall be delivered in person to the notified officer.

8.

The facts narrated in the certificate along with reason if any, in support of result of analysis stated in such certificate, shall be presumed to be true, unless the contrary is proved.

Schedule

1. Maulana Azad College of Technology, Bhopal.

2. Samrat Ashok Technological Institute, Vidisha.

3. Shri Govindram Seksaria Institute of Technology and Science, Indore.

4. Government Engineering College, Jabalpur.
5. Government Engineering College, Raipur.
6. Madhya Engineering College, Gwalior.
7. Government Engineering College, Rewa.
8. Government Engineering College, Ujjain.

[Form I]

[Substituted by Notification No. 11-12-XXIX-II-84, dated 10-7-1984]

[See Rule 3]

Acknowledgment to be given to the dealer under Rule 3 of the Madhya Pradesh Cement Apmishran Nivaran Niyam, 1984

I have this day taken from M/s..... samples of Cement purporting to be of the following quality out of the stock kept in their premises situated at.....for the purpose of test or analysis :

Quality of Cement.....(Purported to be as per Cement Quality Control Order, 1962).

Details of sample taken-

(1)

Total Number of samples taken

4

(2)

Quantity contained in each sample

15 Kilograms

(3)

Name of producer of cement as stamped on bags from which sample is taken.

.....

(4)

Trade name of cement as stamped on bags from which sample is taken.

.....

(5)

Condition of stitching on each

Original stitch in sound
condition/restitched/torn.

Date.....

Signature of Notified Officer

Name.....

Designation.....

Note. - (i) Four samples should be taken of fifteen kilograms weight each for every quality of cement to be tested and for every producer,

(ii)

Random sample of 15 kilograms weight each should be drawn from four different cement bags of same quality and of same producer, Cement of all the four samples should be mixed up so as to form one lot of 60 kilograms. If the total stock is less than four bags, then samples may be drawn from the existing stock of one, two or three bags of cement so that total weight of sample drawn is not less than 60 kilograms and one lot of 60 kilograms may be formed.

(iii)

Out of the lot of 60 kilograms of cement, for lots of 15 kilograms each may be formed. Cement of each lot of 15 kilograms may be kept in polythene bag which should be closed and finally, put in a cloth bag which should be safely stitched and sealed.

(iv)

Each bag of sample should be duly sealed by the notified officer in the presence of the dealer from whom sample is taken and both parties should put their seals and marks on the bags of samples.

(v)

Each bag should be marked with the following details:-

(a)

Name of Proprietor/Partner/Manager from whom a sample is taken.

(b)

Name of firm.

(c)

Date of drawal of sample.

(d)

Quantity contained in bag (in kilograms).

(e)

Signatures of (a) notified officer who has taken the sample; (b) the dealer from whom sample is taken.

(vi)

One sample duly sealed and marked shall be given to the person from whom sample is taken and the other three samples duly sealed and marked shall be retained by the notified officer. The notified officer shall send two samples for test and retain the remaining sample with him.

(vii)

This Form shall be prepared in three copies. One copy shall be given to the dealer or his representative from whom the sample is taken and his signatures obtained on the other copy to be retained with the notified officer. Third copy shall be sent to the authorised analyst to whom sample is sent for test and analysis alongwith the memorandum.

[Form II]

[Substituted by Notification No. 11-12-XXIX-II-84, dated 10-7-1984.]

[See Rule 6]

Memorandum under Rule 6 of the Madhya Pradesh Cement Apmishran Nivaran Niyam, 1984.

No.....

Dated the.....

From

.....

.....

To,

.....

.....

Through : - The Principal.....

The Superintending Engineer (Research), Public Works Department, Research Laboratory, Bhopal.

I send herewith, under the provisions of Rule 6 of the Madhya Pradesh Cement Apmishran Nivaran Niyam, 1984..... Sample(s) of cement purporting to be of..... (Name of quality of cement) for physical and chemical tests or analysis and request that the certificate of the test or analysis may be sent to me in duplicate in Form III appended to the rules aforesaid by registered post acknowledgment due or arrangements may please be made to deliver the certificate to me in person.

2. A copy of the acknowledgment given to the dealer from whom the sample(s) has/have been taken which contains detail of the sample(s), is enclosed.

3. Please send your bill for test/analysis charges in duplicate for payment).

.....

Signature of the Notified Officer

Name.....

Designation.....

Form III

[See Rule 7]

Certificate of Test or Analysis by the Authorised Analyst

(1)

Name and designation of the notified officer from whom sample received.

.....

(2)

Approximate quantity of cement contained in the sample.

.....

(3)

Number and date of notified officer's memorandum enclosing the sample.

.....

(4)

Distinguishing number if any, of the sample

.....

(5)

Date of receipt of sample

.....

(6)

Quality of cement purporting to be contained in the sample
i.e.

.....

(i) Rapid Hardening Portland Cement No. IS-8041-e-1976.

.....

(ii) White Portland cement IS-8042, 1976.

.....

(iii) Hydrophobic Portland Cement IS-8043-Eo 1976.

.....

(v) Portland Blast Furnace Slag Cement (Third Revision)

.....

(vi) Portland Pozzolana Cement (Second Revision) No.
IS-1489-1976.

.....

(vii) High Strength Ordinary Portland Cement and cement used
for the manufacture of railway sleepers No. IS-8112-1976.

.....

(viii) Masonry Cement (First Revision) No. IS-3466-1976.

.....

(ix) Oil Well Cement No. IS-8229-E-1976.

.....

(7)

Condition of seals and stitching on the package.

.....

(8)

Result of test or analysis with protocols of test or analysis
supplied as per statement enclosed.

.....

In the opinion of the undersigned, the sample referred to above is/is not the standard quality as defined in the Cement
(Quality Control) Order, 1962 for the reasons given below :-

Date.....

Signature of the Authorised Analyst

Name.....

Designation.....

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